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Protecting Expressions: This Includes Hate Speech

Should *hate speech* be protected under first-amendment jurisprudence? If so, would this cause less harm, or more – for example, at a setting like that of a college campus? For on the surface, it would seem, almost unquestionably even, that hateful expressions, which include hateful forms of speech, would make a college campus an all around better place to experience and be a part of. In “Why Freedom of Speech Includes Hate Speech”, Jacobson makes an interesting claim:

“Mill’s commitment to a comprehensive Liberty of Thought expressly protects the freedom to express any opinion...regardless of its harmful consequences” (*Jacobson*, 84).

And in relation to this, with an emphasis on college campuses nonetheless, Chemerinsky and Gillman address the topic of *speech codes*—rules that governments have set for their people, in an attempt to protect them against the various types of hate speech. They argue:

"there are strong reasons why campuses should resist the calls to censor and punish people who express ideas considered to be offensive, hateful, or demeaning"(*C&G*, 83).

Therefore, I will argue that the claims made by both Jacobson and C&G do not necessarily support hate speech, but rather the right for one to express themselves freely. Since Jacobson writes in support of Mill, I think it will be helpful to first explicate Mill's view regarding free expression; then I will analyze and evaluate the claim made by C&G; and lastly, a counterargument from Lawrence will be presented that ultimately fails to be persuasive.

In *On Liberty*, Mill states the following:

“If all [human]kind minus one were of one opinion and only one person were of the contrary opinion, [human]kind would be no more justified in silencing that one person, than he, if he, had the power, would be justified in silencing [human]kind” (*Mill, 18*)

A beautiful statement from Mill – undoubtedly an expression from a utilitarian. So how is hate speech taken into consideration? Is this something that a utilitarian would consider in the midst of what it means to have *free speech*? It seems obvious that Mill isn't going to say that hate speech, which includes words and phrases that are spoken in a manner with intent to target and trigger a specific person or group, is in fact protected and fair to spew, but he does seem disgusted by the idea of silencing an opinion – it doesn't matter what the opinion is – it is the act of being able to express, that each individual holds a right to, and that is what Mill, albeit the utilitarian, is attempting to protect. It would be a “peculiar evil” (*Mill, 19*), according to Mill, to silence the expression of the people, just because it is believed to be false – for this “is robbing the human race” (*Mill, 19*). But why is this considered an “evil” to silence an opinion or expression, especially if everyone in the immediate surrounding knows it to be false? Wouldn't

that be doing a service for the people by not allowing the opinion to be heard, and thus preventing any further attraction to it? Mill would say no.

Mill then talks about how neither the right nor the wrong can benefit from silencing opinions by stating two hypotheses: first, we can never know that the opinion we try to dismiss, or silence, or as Mill would say, “stifle” (*Mill, 19*) completely, is in fact a false one; second, even if it is in fact a false opinion, to silence it is still an evil act to commit. It seems then, that this last part pertains to it being “evil” to silence a known, false expression simply because a person should rightfully be able to express themselves. So, if the opinion is right, we may never know. “If wrong”, he says, “they lose what is almost as great a benefit... the clearer perception... of truth, produced by its collision with error”. (*Mill, 19*)

In a nutshell, it seems that Mill is protecting this idea of what it is to have an opinion as an individual human being. Furthermore, it doesn't matter if the opinion is hurtful or not, well not necessarily, but rather, not being able to express said opinion doesn't help to identify what a bad opinion is. Think about that for a second: one cannot term something ‘bad’ if they do not allow for anything but what they think to be ‘good’; and how do they know what they think is good, is actually good? Mill does a fairly significant job outlining as best as he can, the ideals for what it means to have free speech. Because of this we now see how important an opinion can be, no matter if it's right or wrong, that will obviously be decided, but we need to continue to be able to express our opinions, no matter if the majority thinks that they are in fact false and attempt to silence them.

It has been interpreted that Mill supports the idea of a “harm principle” (*Jacobson, 84*) since after all, he supports everyone's having the right to free expression, and this seems, at least

to some, to implicate even those that unfortunately cause harm to themselves, or even worse, to others. Jacobson states:

“It cannot be denied that Mill often uses such phrases as ‘harm to others’ and ‘harm to the interests of others’ loosely” (*Jacobson, 84*).

From this, one would be wrong in assuming that Mill outwardly supports harm. Mill rather, discusses the idea of *self-regarding actions* – actions that only affect oneself; and to understand the concept of the self-regarding is to understand that “[Mill] does not differentiate bad harm from trivial or indifferent harm” (*Jacobson, 86*) So then it would seem that we may cause harm when committing a self-regarding action, affecting things we may not even be aware of. When pondered for a minute, it is hard to argue against how even the smallest self-regarding action can affect more than the person performing it. Mill was really in advocacy of what he called the “principle of liberty” (*Jacobson, 84*). Jacobson highlights the importance of this principle, stating:

“Mill’s commitment to a comprehensive Liberty of Thought expressly protects the freedom to express any opinion, as a matter of ethical discussion, regardless of its harmful consequences” (*Jacobson, 84*).

We should then look at having the ability to discuss and express things freely as a step in the right direction of obtaining certain knowledge and truths. Therefore, Mill “concludes that the Liberty of Thought is a necessary condition for knowledge, though it only contingently promotes

true belief” (*Jacobson, 90*). In addition to all of this, I would like to exhaust that one shouldn’t think that Mill advocated for freedom of expression just so everyone can throw around and sell ideas to one another, but rather to limit expression is to potentially limit knowledge, and this will limit our understanding of the truth.

Now I will address the claim above, made by Chemerinsky and Gillman. So what is a *speech code* exactly? And how can it be helpful to have them implemented? How can they be harmful? A speech code is a law, or rule, set by a system, e.g., educational, political, etc., which aims to dissuade the use of words and phrases considered as *hate speech*. Chemerinsky and Gillman emphasize how codes issued by governments and campuses to protect against hate speech have shown to be "vague and overbroad". (*C&G, 83*) When a rule is too broad, it risks including, and therefore affecting, people that were not necessarily in the intended scope of interest. They go on to emphasize how rules that seek to limit the speech of a particular person or group, needs to be as specific as possible in regards to what words can no longer be said. If not, then this will lead to people being scared to speak on their (potentially controversial) beliefs and ideas; they will be scared of being punished “based on unclear standards” (*C&G, 83*).

What's worse—having someone say something offensive to you, or—keeping in mind you may say the same thing in a different (and more appropriate) context, being punished if you or anyone else says this 'thing'? On one hand there is a world where people get to say what they want—this includes those that will inevitably say things that not everyone wants to hear, and for good reason; and on the other hand, a world where people are told what to say by those that hold power over them, e.g., governments, religions, etc. As Chemerinsky and Gillman, like that of Mill, aren’t seemingly for the use of hate speech, they recognize that we are all individual

people, with our own thoughts and ideas; and in their words, “...there is simply no way to regulate hate speech without censoring ideas.” (*C&G*, 68)

Why do these arguments presented by Chemerinsky and Gillman seem so compelling? Let us look from the other side of the table. Imagine living in a world where you are scared to have an original thought; you are scared to express yourself essentially. Why is that? What events have happened prior to this? Maybe someone at some point had a thought—and then expressed that thought, and now due to the act of expression, they have been punished in some way. But why was the individual punished? Was the thought one of bad nature, meaning it intended to cause harm e.g., emotional, physical, etc., or was it by chance a thought that manifested into an opinion or belief that shaved against the grain of the public’s popular understandings? It’s important to highlight the difference: the former has a reason to punish because there was intended harm, (although this can be tricky because some can think a thought to be harmful—evil, while others can find the same thought to be liberating—good; it depends on the context), and the latter being an example of social systems abusing their power to adapt to new ideas that can potentially be of benefit. Simply put, if we are punished for expressing ourselves, albeit our ideas, we may very well stop expressing our ideas altogether one day, which is to deny ourselves the essence of what it means to be human. Imagine how dry a college experience would then be; nothing but mindless meatsuits walking the campus day-in and day-out.

Lastly, but arguably the most important reason, is to argue against those stating that hate speech has no place in the “legitimate expression of ideas”. (*C&G*, 87) Speech codes can cause the “censorship of words, which inevitably leads to the censorship of ideas”. (*C&G*, 87) Sure, college campuses should be able to ban the use of certain words, but as Chemerinsky and

Gillman addressed how the words being banned are words that are used in everyday conversation with no malicious intent—again, *context* is everything here. They also add how these words can be used for scholarly research and analysis. To end this section with some words of the wise, “...there is simply no way to regulate hate speech without censoring ideas.” (C&G, 68)

So all in all, it’s tricky to say that we should be able to express ideas that can cause harm and offend others. But it is sort of like the saying, ‘You need to have bad in order to understand what good is... but even then do you truly know the difference?’ Sure we don’t all have the best thoughts, so there’s simply no way for us all to have good ideas. But we must still hear everyone’s ideas – this view endorses Mill’s *principle of liberty*; and we must not be scared to express whatever ideas we may have. That is what Cherminsky and Gillman attempt to reinforce with their claims. For those that use their freedom of expression, i.e., speech, to harm others, said “others” can just as easily use their own freedoms to defend themselves, but overall, everyone gets to express their right to express.

Lawrence very transparently would not be in favor of the protection of hate speech, for this type of speech seems to hold no positive significance; for there is a very low probability (essentially none) of anything beneficial arising from the use of hate speech. Lawrence addresses “fighting words” – these are “words, pictures or symbols that by virtue of their form, are commonly understood to convey direct and visceral hatred or contempt for human beings” (Lawrence, 67). He states “when racist [hate] speech takes the form of face-to-face insults, catcalls, or other assaultive speech, aimed at an individual, or a small group of persons, then it fails within the “fighting words” exception to first amendment protection” (Lawrence, 67). He argues that an insult, face-to-face, is equivalent to the use of fighting words, and anyone who performs such an action is “undeserving of first amendment protection” (Lawrence, 67). So

therefore, “racial insults”, albeit hate speech in general, take away from the goal of the first amendment – that is – “to foster the greatest amount of speech” (*Lawrence*, 68). Because of this Lawerence expresses the need for us to reconsider the “balance that must be struck between our concerns for racial equality and freedom of expression...whether the racist speech that we chose to regulate is advancing or retarding the values of the first amendment” (*Lawrence*, 72).

As justified as Lawerence may seem in that “fighting words” do not really do anything that can be considered as *good* when delivering an expression to another, according to Mill it would be more harmful to silence expressions (opinions). Again, this shouldn’t be taken to mean that Mill supports expressions like those of hate speech, i.e., “fighting words”. And Chemerinsky and Gillman would argue that it would cause more harm to censor expressions, even those that can potentially be harmful. So therefore, Lawerence’s argument, that has been positioned here as a counterargument to the claims presented by both Mill and Chemerinsky and Gillman, isn’t necessarily persuasive. Hate speech ” can indeed cause harm; but to silence or censor expressions, including those of the sort, is a deeper harm. Therefore, we should be cautious to cases pertaining to hate speech, and even more cautious in establishing regulations or *speech codes*. I’d like to end with a statement from Jacobson regarding Mill:

“The toleration that Mill extends to all opinions which allows them to be expressed and discussed regardless of their truth, morality, or even harmfulness, should be applied to alien cultures and practices” (*Jacobson*, 91).

Work Cited

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